

Rambali v. State of U.P.

Allahabad High Court · Division Bench · 27 February 2025 · 2025:AHC:27381-DB · WRIT - C No. 4766 of 2025 · **Writ disposed; representation under cl. 6.5 to be decided in one month.**

HEADNOTE

A demand notice of Rs.1,03,226 on a connection alleged to have been disconnected in 1994 is to be objected before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ is disposed with a time-bound direction to consider the representation.

FACTUAL SUMMARY

Petitioner Rambali challenged a notice issued by the electricity authorities directing deposit of Rs.1,03,226 against Connection No. 5974069000. He contended that the connection had been disconnected in 1994 and that the bills were therefore erroneous. The Electricity Department submitted that the grievance had an efficacious remedy before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Counsel for the petitioner did not dispute that remedy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection to Executive Engineer

HOLDING

A consumer disputing a demand notice as erroneously raised on a long-disconnected connection must first approach the Executive Engineer under Clause 6.5; the High Court will not decide the billing objection on writ and will instead direct time-bound consideration of a representation. ¶ 5-7

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A demand notice of Rs.1,03,226 on a connection alleged to have been disconnected in 1994 is to be objected before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ is disposed with a time-bound direction to consider the representation. ¶ 5-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF RS.1,03,226 ON CONNECTION NO. 5974069000 WAS ERRONEOUS BECAUSE THE CONNECTION WAS DISCONNECTED IN 1994

Left to the Executive Engineer on the petitioner's representation under Clause 6.5. ¶ 3-7